

25STCV26138 25STCV26138

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Case Number: 25STCV26138 Hearing Date: September 18, 2026 Dept: 511

Tentative Ruling

Judge Upinder S.

Kalra, Department 511

HEARING DATE: September

18, 2026

CASE NAME: James

Webb Hunter, III v. Sierra Fino, et al.

CASE NO.: 25STCV26138

MOTION

TO DECLARE VEXATIOUS LITIGANT

MOVING PARTY: Defendant

Sam J. Israels; Defendants Sierra Fino and Darren Burris

RESPONDING PARTY(S): Plaintiff James Webb Hunter, III

REQUESTED RELIEF:

Israels Motion:

1. An

order declaring Plaintiff as a vexatious litigant and entering a prefilling

order that prohibits him from filing any new litigation in California in pro

per without first obtaining permission from the presiding justice or presiding judge of the court where the filing is proposed.

Fino & Burris Motion:

1. An order declaring Plaintiff as a vexatious litigant, barring him from filing any new action or proceeding with any existing actions, requiring him to furnish security in the amount of \$50,000, and place him on the statewide vexatious litigant list.

TENTATIVE RULING:

1. Israel's motion for an order declaring Plaintiff as a vexatious litigant is GRANTED;

2. Plaintiff is hereafter required to obtain advance approval of the presiding judge prior to filing new litigation.

STATEMENT OF MATERIAL FACTS AND/OR PROCEEDINGS:

On September 8, 2025, Plaintiff James W. Hunter (Plaintiff) filed a complaint against Defendants Sierra Fino (Fino), Darren Burris (Burris), and Sam J. Israel (Israel) (sometimes collectively Defendants) with four causes of action for: (1) independent equitable action for relief from judgment (extrinsic fraud); (2) civil conspiracy to commit fraud (fraud upon the court); (3) declaratory relief; and (4) injunctive relief.

According to the complaint, Defendants orchestrated a staged and deceitful presentation of false testimony to procure a restraining order against Plaintiff. He further alleges that the trial judge compounded this fraud by denying him his Fifth Amendment rights, displaying bias, and improperly converting the domestic violence restraining order into a civil harassment proceeding without notice, depriving Plaintiff of a fair opportunity to defend himself. As a result, Plaintiff alleges an unjust five-year restraining order.

On September 29, 2025, Israel filed a demurrer.

On October 20, 2025, Fino and Burris filed a special motion to strike (anti-SLAPP).

On October 20, 2025, Israels filed a motion to deem Plaintiff a vexatious litigant.

On October 27, 2025, Israels moved ex parte to advance the hearing date on his motion to deem Plaintiff a vexatious litigant which the court GRANTED.

On October 29, 2025, Fino and Burris filed a joinder to Israels' motion to deem Plaintiff a vexatious litigant.

On November 3, 2025, Plaintiff filed a motion for sanctions which the court DENIED.

On November 3, 2025, Plaintiff filed a motion to disqualify counsel representing Israels.

On November 5, 2025, Plaintiff filed a motion to strike Israels' motion to deem him a vexatious litigant.

On December 2, 2025, Plaintiff filed a motion for order requiring counsel to demonstrate authority to represent Fino.

On December 2, 2025, Plaintiff filed a motion for leave to conduct limited discovery pursuant to CCP § 425.16(g).

On February 24, 2026, Plaintiff moved ex parte to advance the hearings on these motions. The court GRANTED the application as to his motion to strike the vexatious litigant motion only.

On April 29, 2026, Israels filed an amended motion to declare Plaintiff a vexatious litigant. On May 4, 2026, Plaintiff filed an objection to the amended notice. On May 8, 2026, Fino and Burris filed a joinder to the amended motion.

After a series of case reassignments, a case management conference came on for hearing on June 25, 2026. The court and the parties conferred regarding case status and pending motions. Defendants made an oral request to allow amended motions to deem Plaintiff a vexatious litigant which

the court GRANTED. The court set a briefing schedule: amended motions due July 2, 2026; oppositions due August 3, 2026; replies due August 12, 2026. The court would hear the vexatious litigant motion on September 18, 2026 and would schedule the remaining motions at a continued case management conference on that date.

On June 25, 2026, Plaintiff filed a request for dismissal.

On June 30, 2026, Israels filed an ex parte application to re-calendar motion to declare Plaintiff a vexatious litigant which the court GRANTED.

On June 30, 2026, Fino and Burris filed a memorandum of costs.

On July 2, 2026, Israels filed a memorandum of costs.

On July 2, 2026, Plaintiff filed an objection to the hostile, disrespectful, and demeaning treatment of Plaintiff by Hon. Kalra.

On July 6, 2026, Plaintiff filed a motion for order restoring the entire action, or alternatively, vacating or modifying the order selectively restoring only the vexatious litigant motion. That same date, Plaintiff filed a motion for reconsideration of the same order.

On July 13, 2026, Israels filed an amended motion to declare Plaintiff a vexatious litigant.

On July 17, 2026, Fino and Burris filed an amended motion to declare Plaintiff a vexatious litigant.

On August 17, 2026, Plaintiff filed oppositions. On August 31, 2026, Defendants filed replies.

On September 1, 2026, Plaintiff filed a challenge to judicial officer under CCP §§ 170.1/170.3 which was STRICKEN.

LEGAL STANDARD:

A vexatious litigant is a person who "[i]n the immediately preceding seven-year period has commenced, prosecuted, or

maintained in propria persona at least five litigations other than in a small claims court that have been (i) finally determined adversely to the person or (ii) unjustifiably permitted to remain pending at least two years without having been brought to trial or hearing.” (Code Civ. Proc. (CCP) §391(b)(1), emphasis added.)

The vexatious litigant statutes “do not provide for a single procedural mechanism for declaring a person a vexatious litigant” because the “statutes refer to a person’s vexatious litigant status solely in connection with each of the statutory remedies”—a prefiling order or security order. (*Bravo v. Ismaj* (2002)

99 Cal.App.4th 211, 223.) In connection with a security motion, C.C.P. “[s]ections 391.1 and 391.2 provide that the court must hold a hearing on the issue of the litigant’s status” and “consider such evidence, written or oral, by witnesses or by affidavit, as may be material to the ground of the motion.” (*Id.*)

In connection with a motion for a prefiling order, “section 391.7 . . . does not state the manner in which a plaintiff’s status as a vexatious litigant is determined.” (*Id.* at pg. 224)

For purposes of declaring a vexatious litigant under C.C.P. §391(b), “litigation” typically includes appeals and writs. (*McColm v. Westwood Park Assn.* (1998) 62 Cal.App.4th 1211, 1216 [“Manifestly, ‘any civil action or proceeding’ includes any appeal or writ proceeding.”]; *Garcia v. Lacey* (2014) 231 Cal.App.4th 402, 406 [“A litigation includes an appeal or civil writ proceeding filed in an appellate court.”].)

For purposes of C.C.P. §391(b)(1) and (b)(2), cases voluntarily dismissed by the plaintiff (absent settlement) are considered finally determined adversely to that plaintiff. (*Tokerud v. Capitolbank Sacramento* (1995) 38 Cal.App.4th 775, 779 [“A party who repeatedly files baseless actions only to dismiss them is no less vexatious than the party who follows the actions through to completion. The difference is one of degree, not kind.”]; *Garcia*, 231 Cal.App.4th at pg. 406 [“A litigation is finally determined adversely to a plaintiff if he does not win the action or proceeding he began,

including cases that are voluntarily dismissed by a plaintiff.”.) However, the “summary denial of a writ petition that merely sought relief from pretrial rulings and did not constitute the exclusive means of obtaining appellate review would not qualify as a litigation finally determined adversely . . . [and] cannot count towards the five litigations required” by C.C.P. §391(b)(1). (Fink v. Shemtov (2010) 180 Cal.App.4th 1160, 1173.)

ANALYSIS:

Evidentiary

Objections

The court DENIES Plaintiff’s evidentiary objections as immaterial to this ruling.

Request for

Judicial Notice

The court GRANTS Israel’s and Hunter’s requests for judicial notice of court files, records, register of actions and dockets

Vexatious Litigant

Israel contends Plaintiff is a vexatious litigation because:

(1) he has filed, in pro per, more than five litigations in the past seven years which concluded against him; (2) he has repeatedly filed lawsuits, motions, and other pleadings to re-litigate the same cause of action, claim, controversy, or other issue of fact or law already decided against Plaintiff entered in Los Angeles Case No. 22SMR000115 (the Domestic Violence Restraining Order Case); (3) he repeatedly filed unmeritorious motions, pleadings, or other papers on at least 18 occasions; and (4) his litigation conduct as a whole demonstrates he is a vexatious litigant.

Fino and Burris contend Plaintiff is a vexatious litigant

for similar reasons and he has filed actions against them despite their protected status in the domestic violence restraining order. They add that Plaintiff has also expressed his intent to bankrupt Ms. Fino and her attorneys.

Plaintiff argues this motion is improper because the court did not have authority to allow briefing on it after he dismissed this matter.

On the merits, Plaintiff argues that all Defendants failed in their burden under any theory to show he is a vexatious litigant. As to Fino and Burris, Plaintiff challenges their opposition as untimely.[1]

Israel's replies that Plaintiff adds requirements that do not exist in the statute, Plaintiff did not rebut the presumption that his voluntary dismissals are adverse determinations to him, and Plaintiff admits to filing more than five cases in a seven year period.

Fino and Burris reply that a prior denial of a vexatious litigant motion does not preclude this court from considering this motion, there is no collateral estoppel as to subsequent conduct, and this is not an improper motion for reconsideration.

i.

Five

Litigation within Seven Years With Outcomes Adverse to Plaintiff

Israel's identified the following cases initiated by Plaintiff that were not decided in his favor. This includes cases he voluntarily dismissed. (Tokerud, supra, 38 Cal.App.4th at p. 779.)

The seven year lookback period is measured from the date the motion or OSC is filed. (In re Marriage of Kouwabina & Veltman (2025) 115 Cal.App.5th 293, 298.)

After reviewing the papers and evidence supported therein, at the time of filing the motion, Plaintiff satisfies the numerical requirements of CCP § 391(b)(1).

To start, the look back period commenced, at the earliest, on October 20, 2025 when Israel's filed his initial motion to deem Plaintiff a vexatious litigant. Israel's filed an amended motion on April 29, 2026 (before Plaintiff's dismissal) and another amended memorandum on July 13, 2026 (after Plaintiff's dismissal). Fino and Burris filed their motion on July 17, 2026.[2] The latest look back date is therefore April 29, 2026 before Plaintiff filed his request for dismissal.

As of April 29, 2026, the following matters were filed by

Plaintiff, in pro per, and finally decided adversely against him:

No.

Case Name & No.

Status

1

Los Angeles

Case No. 23SMCV02140

James Hunter v. Darren Burris

Request for

Dismissal filed 11/25/2025

2

Los Angeles

Case No. 25SMCV03753

James W. Hunter v. A, George Glasco

Request for

Dismissal filed 11/03/25

3

Los Angeles

Case No. 25NNCV04928

James W. Hunter v. A24 Films, LLC,
et al.

Request for

Dismissal filed 09/09/25

4

Second

District Court of Appeal Case No. B324129

S.F. v. Hunter

Affirmed in

full 02/25/2025 against Mr. Hunter (appellant) and Petition for Re-Hearing
denied on March 18, 2025.

5

Second

District Court of Appeal Case No. B349792

Hunter v. Superior Court

Petition

summarily denied by order 11/04/2025 “for failing to demonstrate the
respondent court erred in striking the statement of disqualification”

6

United States Supreme Court Case No. 25-6787

James Webb Hunter v.

S.F.

Petition for a writ of certiorari denied 04/20/2026.

While it appears there are six actions, when considering the
evidence presented, there are really five.

First, the United States Supreme Court Cases is likely
insufficient under Fink as it was a
summarily denied petition with no evidence the petitions were the exclusive
means of appellate review. (Fink, supra,
180 Cal.App.4th at p. 1172-1173.)

Next, Plaintiff provided evidence, via declaration, that he

initiated an additional appeal while represented by counsel. (Declaration of James Webb Hunter ¶¶ 3, 4.) This is for Case No. B324129. (Ibid.) However, the Court of Appeal case docket indicates that he filed the civil case information stated on November 10, 2022 in pro per. (Israel's RJN, Exhibit M; Court of Appeal Second District docket for Case No. B324129.) The court need not resolve this dispute in the court files because it is undisputed that Hunter substituted Lewin out on or about March 6, 2025, and thereafter continued to prosecute and maintain the action by filing a petition for rehearing on March 11, 2025. (September 14, 2026 Decl. Hunter ¶ 25.) [3] As a result, this appeal counts towards finding Plaintiff a vexatious litigant.

The remaining cases identified in this list favor finding a vexatious litigant. First, three of them satisfy Tokerud. These are Case Nos.: 23SMCV02140, 25SMCV03753, and 25NNCV04928. Plaintiff filed voluntary dismissals for each case. While Plaintiff argues that one of the dismissals occurred before he served the defendants, the court is not aware of authority that this is sufficient to defeat the presumption that it is an adverse final determination. Second, one Court of Appeal petition satisfies Fink in that it was the exclusive means for the Court of Appeal to exercise authority (Case No. B34972). As a result, these four cases also count towards finding Plaintiff a vexatious litigant.

Thus, there are five litigations commenced by Plaintiff as a pro se litigant within the last seven years that have a final adverse ruling against him.[4] A determination that he is a vexatious litigant is therefore proper.[5]

Accordingly, the court GRANTS Israel's motion to determine Plaintiff as a vexatious litigant.

CONCLUSION:

For the foregoing reasons, the Court decides the pending motion as follows:

1. Israel's motion for an order declaring Plaintiff as a vexatious litigant is GRANTED;[6]

2. Plaintiff is

hereafter required to obtain advance approval of the presiding judge prior to filing new litigation.

Defendant Israel is to give notice.

IT IS SO ORDERED.

Dated: September 18, 2026 _____ Upinder
S. Kalra

Judge
of the Superior Court

[1]

The court is not persuaded by this argument since Plaintiff had one month pursuant to the briefing schedule to prepare his opposition. (July 2, 2026 Ruling on Ex Parte Application.) Therefore, there is no undue prejudice.

[2]

Fino & Burris's motion was filed after Plaintiff's June 26, 2026 request for dismissal. The court is not aware of authority permitting consideration of their motion. However, this will be a distinction without a difference.

[3]On

September 14, 2026, without permission of the court, Hunter filed sur-reply documents including a supplemental declaration and objections. Including are documents that Hunter could have provided in his opposition showing that Lewin was involved in the appeal. The court disregards these filings other than as offering further evidence that Lewin was involved and confirmation by Hunter that by filing a petition for rehearing, Hunter acknowledges that he maintained the appeal in propria persona.

[4]

The court declines to address the remaining arguments. Moreover, the court denies Hunter's September 14, 2026 request for evidentiary hearing and oral testimony.

[5]

There are also several identified pending matters, including dismissed matters filed after the look back period commenced, that the court did not consider in

making this determination. Those are:

No.

Case Name & No.

Status

1

Los Angeles Case No. 23SMCV02142

James Hunter

v. Sierra Fino

Summary Judgment entered 11/14/25;

Appeal pending.

2

Los Angeles Case No. 23STCV25071

James Hunter

v. Todd Krauss, et al.

Pending.

3

Los Angeles Case No. 24SMCV00148

James Hunter

v. Mia Goth, et al.

Pending.

4

Los Angeles Case No. 25STCV26138

James W.

Hunter v. Sierra Fino, et al.

Request for Dismissal filed 06/26/26

(no notice of settlement)

5

Second District Court of Appeal Case No. B353681

Hunter v.

Israels

Pending.

6

Los Angeles Case No. 24SMCV04064

James Hunter

v. Sam J. Israels

Pending.

7

Second District Court of Appeal Case No. B357081

James W.

Hunter v. The Superior Court of Los Angeles County

Petition for writ of mandated denied 09/09/2026 for
failing to demonstrate entitlement to extraordinary relief.

8

Second District Court of Appeal Case No. B351138

Hunter v. Fino

Pending.

9

California Supreme Court

Case No. S290423

F.(S.) v. Hunter

Petition for review and
application for stay denied 05/14/2025.

[6]The
court grants Defendants Fino's and Burris' May 8, 2026 to join Israels' motions.